

23STCV19924 23STCV19924

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-17

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Case Number: 23STCV19924 Hearing Date: August 17, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV19924

DOUGLAS

FOWLER, AN INDIVIDUAL, et al. vs CEDARS-SINAI MEDICAL CENTER, et al.

August

17, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT, ALI JOHN ENAYATI, M.D.'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION.

RULING:

The Court denies the Motion
for Summary Judgment and Alternative Motion for Summary Adjudication.

The Court overrules all
of Defendant's evidentiary objections filed August 6, 2026, addressing
Plaintiff's filed expert Declaration of Kevin Daniel Shaw, M.D.

Plaintiff to give notice.

I.

BACKGROUND

On August 21, 2023, SAGE
FOWLER (Plaintiff) filed a Complaint against CEDARS-SINAI MEDICAL CENTER; DYLAN
FOWLER; JASON MONTGOMERY CUELLAR, M.D.; and ALI JOHN ENAYATI, M.D. (Defendants).

Plaintiff alleges a Cause
of Action for Medical Negligence (a survivor action), and another for Wrongful
Death of her mother Sandra Klorman on August 22, 2022, after
a
blood transfusion.

On January 30, 2026, ALI
JOHN ENAYATI, M.D. (Defendant) filed the Motion for Summary Judgment or Summary
Adjudication of each Cause of Action, on grounds that Defendant acted at all
times within the applicable standard of care in his care and treatment of the decedent,
did not cause or contribute to decedent's or Plaintiff's alleged injuries, and because
without breach of duty and causation disputes as to the medical negligence
claim the one for wrongful death also fails.

On July 28, 2026, Plaintiff
filed an Opposition, based upon counterarguments that the opposing expert
declaration supports triable issues of material fact as to medical negligence
and wrongful death.

II.

LEGAL STANDARD

"[T]he party moving for

summary judgment in a medical malpractice case bears the burden of establishing his compliance with the pertinent standard of care through the use of expert testimony....” (Charlie L. v. Kangavari (2025) 107 Cal.App.5th 1117, 1132.) Summary judgment must be granted if health care providers file a supportive expert declaration establishing conduct falling within the community standard of care, if opposing parties file no conflicting expert declaration. (Powell v. Kleinman (2007) 151 Cal.App.4th 112, 123; Munro v. Regents of the Univ. of Cal. (1989) 215 Cal.App.3d 977, 984-985 [“The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony ..., unless the conduct required by the particular circumstances is within the common knowledge of the layman.”].) “When the moving party produces a competent expert declaration showing there is no triable issue of fact on an essential element of the opposing party’s claims, the opposing party’s burden is to produce a competent expert declaration to the contrary.” (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761-762.)

As to summary judgment or adjudication motions, judges need only rule on evidentiary objections deemed material to the disposition. (Code Civ. Proc., § 437c, subd. (q).) If evidentiary objections are not expressly ruled upon, then appellate courts presume that they have been overruled. (Union Pac. R.R. Co. v. Superior Court (2024) 105 Cal.App.5th 838, 850 [citing Reid v. Google, Inc. (2010) 50 Cal.4th 512, 534]. Accord, Valentine v. Plum Healthcare Grp., LLC (2019) 37 Cal.App.5th 1076, 1089.) The law does not require explanations for rulings on evidentiary objections. (Mora v. Big Lots Stores, Inc. (2011) 194 Cal.App.4th 496, 512, fn.15, disapproved of on other grounds by Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955.)

III.

ANALYSIS

Defendant contends he acted within the standard of care in care and treatment of the decedent and did not cause or contributed to the decedent’s or Plaintiff’s alleged injuries. Defendant’s Reply emphasizes that Plaintiff’s expert declaration is incompetent, lacking in evidentiary foundation, and unsupportive of triable issues of material fact.

Plaintiff submits the Declaration of medical expert Kevin Daniel Shaw, M.D., starting at the tenth page of the Opposition, to support disputes as to whether Defendant's negligence was a substantial factor in causing the death.

A.

Medical Negligence

Summary judgment must be denied if an opposing expert declaration raises a triable issue as to whether a physician deviated from the standard of care, thereby causing an injury and actual loss or damage. (*Tortorella v. Castro* (2006) 140 Cal.App.4th 1, 12-13.)

"A trial court enjoys broad discretion in ruling on foundational matters on which expert testimony is to be based." (*Maatuk v. Guttman* (2009) 173 Cal.App.4th 1191, 1197.) "The court must not weigh an opinion's probative value or substitute its own opinion for the expert's opinion. Rather, the court must simply determine whether the matter relied on can provide a reasonable basis for the opinion or whether that opinion is based on a leap of logic or conjecture." (*Sargon Ent., Inc. v. Univ. of So. Cal.* (2012) 55 Cal.4th 747, 772.) " 'The goal of trial court gatekeeping is simply to exclude "clearly invalid and unreliable" expert opinion.' " (*Cooper v. Takeda Pharms. Am., Inc.* (2015) 239 Cal.App.4th 555, 592 ["methodologies were explored in detail through cross-examination and with the defense expert witnesses, and constituted evidence that went to the weight and not the admissibility...."].) " '[Q]uestions regarding the degree of an expert's knowledge go more to the weight of the evidence presented than to its admissibility.' " (*Richard v. Union Pac. R.R. Co.* (2024) 105 Cal.App.5th 1263, 1277.)

"[T]he plaintiff must offer an expert opinion that contains a reasoned explanation illuminating why the facts have convinced the expert, and therefore should convince the jury, that it is more probable than not the negligent act was a cause-in-fact of the plaintiff's injury." (*Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1119 [applying abuse-of-discretion standard as to jury trial].) Appellate courts "liberally construe the declarations for the plaintiff's experts and resolve any doubts as

to the propriety of granting the motion in favor of the plaintiff.” (Powell v. Kleinman (2007) 151 Cal.App.4th 112, 126, 129 [reasoning that although expert declaration was conclusory re causation, admissible opinion re conduct below the standard of care reasonably inferred that, but for the conduct, the injuries would not have occurred].) “In light of the rule of liberal construction, a reasoned explanation required in an expert declaration filed in opposition to a summary judgment motion need not be as detailed or extensive as that required in expert testimony presented in support of a summary judgment motion or at trial.” (Garrett v. Howmedica Osteonics Corp. (2013) 214 Cal.App.4th 173, 189.)

Here, the Court determines that the opposing expert declaration is extensive, detailed, competent and admissible, and lays sufficient foundation to provide reasonable bases for the stated opinions, including as to the standard of care and causation, as related to both Causes of Action. Per paragraph 3 of the opposing expert declaration, evidentiary foundation specifically includes, “medical records from Cedars-Sinai Medical Center; the July 12, 2022 operative reports; the death certificate; as well as the declaration of Michael Eilbert, M.D.”

Assuming, *arguendo*, that portions of the expert declaration attacked within the evidentiary objections, are inadmissible, there is sufficient proof to raise disputes about standard of care and causation at least in some aspects. Opposing declarations need not address all the elements of the opposition's causes of action but only need to show a triable issue of material fact based upon admissible opinions. (Powell v. Kleinman (2007) 151 Cal.App.4th 112, 130 [“Dr. Meub's opinions are properly considered in opposition to the summary judgment motions. Under the principle of liberal interpretation of evidence offered in opposition to summary judgment, Dr. Meub's opinions create triable issues of fact which preclude summary judgment based on the issues of breach of the duty of care and causation.”].) Further, that some facts arguably counter some expert opinions, goes to the weight and not admissibility of the evidence.

B.

Wrongful Death

For reasons analyzed above, Plaintiff's Wrongful Death theory is likewise related to triable issues of material fact regarding negligence and causation. (See Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1263 [elements of cause of action for wrongful death are a tort, resulting death,

and damages of the heirs]; Daniels v.

Sunrise Senior Living, Inc. (2013) 212 Cal.App.4th 674, 680 [wrongful death actions compensate heirs for their own losses and personal injuries, and are not derivative of decedents' claims].)

IV.

CONCLUSION

In summary, the Court denies the Motion and Alternative Motion, because the Opposition supports triable issues of material fact.